Sprinklers Left Out of Many New Schools

Many of Oakland's new schools are being built without automatic sprinkling systems, despite their proven ability to minimize fire damage, according to a recent report from the city.

The report, forwarded to the school district from City Manager Cecil Riley, is based on an analysis of all fires in the Oakland public schools between 1971 and 1976. The study showed that the dollar loss per fire was 6.4 times greater in schools without sprinklers than it was in schools with sprinklers.

The average fire in schools without sprinkling systems cost $3,940.15. The average fire in schools with the automatic sprinklers cost $615.92, the analysis by Fire Marshal Edgar Heaney revealed.

Mr. Riley told District Superintendent Ruth Love that the city is very concerned that the new schools, being built to meet earthquake safety standards, lack sprinklers.

"A graphic example of our concern is Fremont High School, which had 108 fires during the five-year period," he wrote. "Because of the effectiveness of automatic sprinkler protection, the average loss per fire was only $192.99. If the new facility is to be constructed without automatic sprinkler protection, it can be anticipated that we may experience excessive fire losses."

Mr. Riley asked to meet with Ms. Love as soon as possible to discuss the report and consider ways to add sprinklers to the new schools.

According to Mr. Heaney, the school district used special tax override funds several years ago to put sprinklers in those schools which had the highest incidence of fire.

Although those schools continued to have more fires, their value dropped dramatically, the report showed. Over the five-year period, the 43 schools without sprinklers had a total of 315 fires, with a total loss of $607,948. The 35 schools with sprinklers had 628 fires, with a total loss of $386,112.

The fire marshal's study also showed that arson was the cause of 87.8 per cent of the school fires.

"In many cases, the crime of arson is an afterthought, resulting from the entry into a building for other illegal purposes," Mr. Heaney wrote. He suggested that the district tighten security and lock up all flammable liquids and other materials which might be used to start fires.

Ms. Love informed school board members of the report this week, and promised to furnish them with copies immediately.

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Reputed Crime Kingpin Mum On JFK Death

SANTOS TRAFFICANTE JR.
Provides no answers

WASHINGTON (AP)—A reputed crime figure invoked the Fifth Amendment to all questions today as the House Committee on Assassinations asked whether he knew in advance that President John F. Kennedy was going to be murdered.

In refusing to answer questions, Santos Trafficante, once a reputed gambling kingpin in Cuba, cited his constitutional right against self-incrimination.

He also refused to answer whether he had known Jack Ruby, the man who killed Lee Harvey Oswald, or whether Ruby once visited Trafficante when he was in prison in Cuba. The Warren Commission said Oswald was the lone assassin of Kennedy.

In addition, he refused to answer whether he was, in fact, involved in CIA assassination plots against Cuban Prime Minister Fidel Castro, as reported by the Senate Intelligence Committee, or whether any federal agency attempted to keep him from testifying before the House Committee on Assassinations.

Trafficante is the sole survivor of a conclaved trio secretly enlisted by the CIA in 1960 in futile efforts to kill Castro.

According to published reports, the FBI had information that Trafficante had told people in advance that Kennedy would be assassinated, but the FBI dismissed the remark as braggadocio.

Trafficante refused to answer all questions put to him by Chief Counsel Richard A. Sprague and a committee member, citing the First, Fourth, Fifth and Fourteenth Amendments of the Constitution.

But Chairman Louis Stokes, D-Ohio, told Trafficante that was not good enough and that the committee might recommend to the House that he be cited for contempt of Congress.

Trafficante still refused to answer any questions.

Sprague asked him if he had any advance information that Kennedy was going to be assassinated Nov. 22, 1963, or that he had advised other people of that fact.

Trafficante refused to answer. "Did you ever discuss with any individual plans to assassinate President Kennedy prior to his assassination?" Sprague questioned.

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Racial Bias Charged by Wendy Juror

SAN FRANCISCO—An affidavit filed by the only non-white juror in the Wendy Yoshimura trial, charging racial prejudice and gross misconduct on the part of other jurors, will be cited tomorrow when attorneys for Miss Yoshimura file a request for a new trial.

The affidavit by Lucille Mitchell, who is black, was announced at a press conference this morning held by the Wendy Yoshimura Fair Trial Committee at Glide Memorial Methodist Church.

Mrs. Mitchell was not present, speakers said, because she has been harrassed and threatened since she started speaking to the press about negative aspects of the jury.

The affidavit states that white members of the jury brought newspaper clippings about the trial and passed them around the jury assembly room, contrary to specific instructions from Judge Martin Pulich.

Robert Lage, foreman of the jury, said the allegation that newspaper clippings about the trial were passed around was "not so. It's absolutely false," he said this morning. "There couldn't be anything more wrong."

The affidavit continued, "During the course of deliberations, while the jury was discussing defendant Yoshimura's boyfriend, Willy Brandt, one woman juror made the remark, 'He could have had a blonde'."

An alternate juror, also black, Del-

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Insurance Canceled —Cops Bad Drivers

MANASSAS, Va. (AP)—Policemen in this Virginia city have had so many automobile accidents the insurance on the city's police cars has been canceled.

The city has obtained new insurance with another company and has ordered its policemen to take defensive driving lessons.

Neither Rain Nor...

Tribune photo by BUSS REED

Two amphibious golfers at the Alameda municipal course enjoy wet, uncrowded fairways

Good Rain, but Too Short

By MIKE LIBBEY

Dark clouds poured welcome rain on the Bay Area through most of yesterday and last night, and the storm left lingering showers today.

The weather front moved slowly southward, bringing rain to Southern California today.

It left the Bay Area with only a slight chance of showers expected tonight, and partly skies and mostly fair weather expected tomorrow.

Forecaster Bill Sapp of the National Weather Service in San Francisco said a smaller storm was about 700 miles northwest of the Bay Area today and was expected to bring more showers on Friday, but "not as intense as yesterday."

The measured rainfall for the storm, up to two inches in some areas, was the heaviest in a 24-hour period in the Bay Area this winter, Sapp said.

Although the rain was a welcome sight, water experts repeated their view that rain is needed in feet, not inches, to have a significant impact on the water shortage.

The state Drought Information Center in Sacramento held to its prediction that if current rain patterns continue, 1976-77 will be the driest year in California's recorded history.

While in full force, the storm did the biggest favor to parched Marin County. The Bay Area's highest rainfall was measured in Kentfield, which recorded 1.97 inches by dawn today.

The Marin Civic Center had 1.30 inches, while Santa Rosa recorded 1.63 inches. San Francisco airport had 1.39 inches and Moffett Field in Sunnyvale had 1.29 inches.

The Oakland airport had 1.16 inches from the time the heavy rain started at about 9:30 a.m. yesterday through midnight. From midnight to dawn, the rainfall was .17 of an inch, and then the rain clouds began to gradually trail away.

The showers turned to snow last night at the highest reaches of Mt. Diablo in Contra Costa County, but a heavy cloud cover shielded the white mantle today. State park officials estimated that 1.5 inches of snow fell at the mountaintop.

The weather front brought temperatures in the 50s today, and cool temperatures were expected to continue. Lows tonight were expected to drop to the mid 30s in outlying parts of the Bay Area and in the valleys.

Light winds were predicted.

In the Sierra and Lake Tahoe areas, snow showers fell to about 3,000 feet and rain showers fell below that elevation for most of yesterday and last night. But after midnight it was dry, according to

Continued Back Page, Col. 2

Smoking Ban Asked At Oakland Arena

A ban on smoking in seating areas of the Coliseum Arena has been asked by an Oakland City Council committee.

On a motion by City Councilman Joe Coto, the social concerns committee yesterday also asked the staff for a report on what restrictions against smoking are now being imposed at city-owned facilities.

The committee, headed by Councilman Raymond Eng, is expected to meet again in two or three weeks.

Helen Bridge, of Alameda, had written to the council last August asking that an ordinance banning smoking for spectators at the Arena be passed since 64 per cent of the adult American public, plus children, are nonsmokers.

Yesterday she told the committee she hoped for the "strongest possible ordinance we can have."

Peter Botte, general manager of the Paramount Theatre of the Arts, expressed support for an ordinance against smoking throughout the Paramount, including the lobby, but asked that it apply to all theaters.

"It has to be the same for everyone . . . because no one will pay any attention to it if it's not," Mr. Botte said.

But Councilman John Sutter, who is not a member of the committee, said he didn't think the city should tell privately owned theaters to outlaw smoking.

The Paramount is concerned about its carpeting, not about the hazards to the health from smoking, Mr. Sutter noted.

Ray Ward, assistant general manager of the Coliseum-Arena complex, said that allowing smoking at an alternative area of the Arena would be "a reasonable approach to the situation."

The committee passed Mr. Coto's motion unanimously. Councilman Joshua Rose is the third member of the committee.

Senate Plans Tax Break for Couples

WASHINGTON (AP)—The Senate Finance Committee appears ready to fatten the House-approved permanent tax cut for married couples and take away some benefits now earmarked for single persons.

No large sums are involved in either case. But action contemplated by the committee could mean a tax increase of about $25 for 1.5 million single persons.

It is all in the name of reducing the "marriage penalty," which often has been accused of enticing persons to live together without benefit of marriage. The debate is on the tax-cut bill approved by the House earlier this month as part of an effort to stimulate the economy.

The "marriage penalty" arises from the fact that current law allows single persons who do not itemize deductions to take a minimum standard deduction of $1,700, while the same allowance for a couple filing a joint return is $2,100. The maximum standard deduction for singles is $2,400; for couples filing jointly it is $2,800.

Thus, two single persons who formerly were allowed to deduct a total of $3,400 could deduct only $2,100 if they married and filed a joint return, as most couples do. That means the couple would have a taxable income $1,300 higher than if he and she were still single.

For persons who earn more and qualify for the maximum standard deduction, the penalty is $2,000 ($4,800 for two singles compared with $2,800 for a couple).

Both the House and Senate and the Carter administration appear to agree on the need to simplify tax returns by approving one flat standard deduction for singles and another for couples. The debate is over how much.

President Carter recommended a $2,200 standard deduction for singles and $3,000 for couples, which would have meant a $1,400 marriage penalty. The House, seeking to prevent a tax hike for some single persons, voted $2,400 and $3,000, resulting in a $600 hike in the current $1,300 penalty.

Sen. Russell B. Long, chairman of the Senate Finance Committee, told his colleagues yesterday the House bill would tax "people for doing something that society wants them to do"—marrying and raising a family.

Sen. Bob Packwood, R-Ore., contended many women no longer see their mission in life as quitting work, marrying and having children.

The committee staff came up with a compromise that would mean a $1,500 penalty, with a $3,100 standard deduction for joint returns and $2,300 for singles. "That makes so much better sense than what the House has in its bill," Sen.

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Did You Know...

. . . that a bill introduced in the Senate yesterday would make it a crime to solicit others to commit arson, and would preclude any possibility of probation for a person convicted of arson? See The Day in Sacramento, Page 10.